

26TRCV00838 26TRCV00838

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Case Number: 26TRCV00838 Hearing Date: August 10, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Monday, August 10, 2026

Calendar No.

PROCEEDINGS

Jerry

Cruse v. Torrance Gardens, L.P., et al.

26TRCV00838

1. Torrance Gardens, L.P.'s Demurrer to Complaint

2.

Torrance Gardens,

L.P.'s Motion to Strike Portions of Complaint

TENTATIVE RULING

Torrance Gardens, L.P.'s Demurrer to Complaint is overruled,
in part, and sustained with 20 days leave to amend, in part.

Torrance Gardens, L.P.'s Motion to Strike Portions of Complaint is denied, in part, and is moot, in part.

Background

Plaintiff's Complaint was filed on March 9, 2026.

Plaintiff alleges the following facts. Plaintiff was a tenant of a property located at 2059 Artesia Blvd. #53 Torrance, CA 90254. The property suffered from habitability problems namely severe bed bug infestation. Defendant had knowledge of the bed bug infestation from complaints made by tenants yet failed to warn or notify of the condition nor abate the conditions. Plaintiff alleges the following causes of action: 1) Breach of Implied Warranty of Habitability (Violation of Civil Code § 1941.1; Health & Safety Code 17920.3) 2) Breach of Implied Warranty of Habitability (Violation of Civil Code § 1942.4) 3) Negligence – Premises Liability/Failure to Warn – Negligence Per Se 4) Private Nuisance 5) Public Nuisance 6) Breach of Contract 7) Breach of Covenant of Quiet Enjoyment 8) Intentional Infliction of Emotional Distress 9) Fraudulent Concealment 10) Unfair Business Practices (Violation of Business & Professions Code § 17200, et seq.)

Meet and Confer

Defendant set forth a meet and confer declaration in sufficient compliance with CCP § 430.41 and CCP § 435.5. (Decl. Kyle J. Meade.)

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.) Where the complaint fails to state facts

sufficient to constitute a cause of action, courts should sustain the demurrer.
(C.C.P., § 430.10(e); Zelig v. County
of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are
the essential facts of the case "with reasonable precision and with
particularity sufficiently specific to acquaint the defendant with the nature,
source, and extent of his cause of action." (Gressley v. Williams (1961) 193
Cal.App.2d 636, 643-644.) "Whether
the plaintiff will be able to prove the pleaded facts is irrelevant to ruling
upon the demurrer." (Stevens v.
Superior Court (1986) 180 Cal.App.3d 605, 609–610.) Under Code Civil Procedure § 430.10(f), a
demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual
allegations are so confusing they do not sufficiently apprise a defendant of
the issues it is being asked to meet. (Williams
v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Defendant demurs to
the second, fifth, and eighth through tenth causes of action of the Complaint pursuant
to CCP § 430.10(e)(f) on the grounds that the causes of action fail to state
sufficient facts and are uncertain.

Second Cause of
Action for Violation of Civil Code § 1942.4

Defendant's
demurrer to the second cause of action is sustained with 20 days leave to
amend. Plaintiff fails to state sufficient facts to state a cause of action.

Civ. Code, § 1942.4
states:

"(a) A landlord of a
dwelling may not demand rent, collect rent, issue a notice of a rent increase,
or issue a three-day notice to pay rent or quit pursuant to subdivision (2) of
Section 1161 of the Code of Civil Procedure, if all of the following conditions
exist prior to the landlord's demand or notice:

(1) The dwelling
substantially lacks any of the affirmative standard characteristics listed in

Section 1941.1 or violates Section 17920.10 of the Health and Safety Code, or is deemed and declared substandard as set forth in Section 17920.3 of the Health and Safety Code because conditions listed in that section exist to an extent that endangers the life, limb, health, property, safety, or welfare of the public or the occupants of the dwelling.

(2) A public officer

or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions.

(3) The conditions

have existed and have not been abated 35 days beyond the date of service of the notice specified in paragraph (2) and the delay is without good cause. For purposes of this subdivision, service shall be complete at the time of deposit in the United States mail.

(4) The conditions

were not caused by an act or omission of the tenant or lessee in violation of Section 1929 or 1941.2.

(b)(1) A landlord who

violates this section is liable to the tenant or lessee for the actual damages sustained by the tenant or lessee and special damages of not less than one hundred dollars (\$100) and not more than five thousand dollars (\$5,000).

(2) The prevailing

party shall be entitled to recovery of reasonable attorney's fees and costs of the suit in an amount fixed by the court.

(c) Any court that

awards damages under this section may also order the landlord to abate any nuisance at the rental dwelling and to repair any substandard conditions of the rental dwelling, as defined in Section 1941.1, which significantly or materially affect the health or safety of the occupants of the rental dwelling and are uncorrected. If the court orders repairs or corrections, or both, the court's jurisdiction continues over the matter for the purpose of ensuring compliance.

(d) The tenant or lessee shall be under no obligation to undertake any other remedy prior to exercising his or her rights under this section.

(e) Any action under this section may be maintained in small claims court if the claim does not exceed the jurisdictional limit of that court.

(f) The remedy provided by this section may be utilized in addition to any other remedy provided by this chapter, the rental agreement, lease, or other applicable statutory or common law. Nothing in this section shall require any landlord to comply with this section if he or she pursues his or her rights pursuant to Chapter 12.75 (commencing with Section 7060) of Division 7 of Title 1 of the Government Code."

Plaintiff fails to plead facts to satisfy Section 1942.4(a)(2): "(2) A public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions." Plaintiff simply states that he made a complaint to the Los Angeles County Health Department. However, no specific facts are stated to show that Defendant was notified in writing by a public officer after inspection of the premises of Defendant's obligations to repair the premises, and then, that Defendant did not abate the issues within 35 days.

Thus, the demurrer to the second cause of action is sustained with 20 days leave to amend.

Fifth Cause of
Action for Public Nuisance

Defendant's demurrer to the fifth cause of action is sustained with 20 days leave to amend. Plaintiff fails to state sufficient facts to state the cause of action.

"Civil Code section 3479 defines a nuisance as '[a]nything which is injurious to health, or is indecent or offensive to the senses, or an obstruction to the

free use of property, so as to interfere with the comfortable enjoyment of life or property.” *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 919.

“The elements of an action for private nuisance are: First, the plaintiff must prove an interference with his use and enjoyment of his property. Second, the invasion of the plaintiff’s interest in the use and enjoyment of the land [must be] substantial, i.e., that it cause[s] the plaintiff to suffer ‘substantial actual damage. Third, [t]he interference with the protected interest must not only be substantial, but it must also be unreasonable, i.e., it must be of such a nature, duration or amount as to constitute unreasonable interference with the use and enjoyment of the land.” *Mendez v. Rancho Valencia Resort Partners, LLC* (2016) 3 Cal.App.5th 248, 262-63 (internal citations and quotations omitted).

“[I]n determining whether a particular activity constitutes a public nuisance, a court considers three elements: (1) the proscribed act, (2) whether the result of the act interferes with the comfortable enjoyment of life or property, and (3) whether the act affects a sufficient number of persons.” *People v. McDonald* (2006) 137 Cal.App.4th 521, 535.

“A private nuisance cause of action requires the plaintiff to prove an injury specifically referable to the use and enjoyment of his or her land. Pursuant to Civil Code section 3501, a plaintiff seeking to remedy a private nuisance is limited to a civil action or abatement. Unlike public nuisance, which is an interference with the rights of the community at large, private nuisance is a civil wrong based on disturbance of rights in land.... [T]o proceed on a private nuisance theory the plaintiff must prove an injury specifically referable to the use and enjoyment of his or her land. The injury, however, need not be different in kind from that suffered by the general public.” *Mendez v. Rancho Valencia Resort Partners, LLC* (2016) 3 Cal.App.5th 248, 262 (internal citations and quotations omitted).

Plaintiff

fails to plead facts necessary to state a cause of action for public nuisance. Plaintiff has not pled facts to show that the alleged offensive act affected a

sufficient number of persons to qualify as a public nuisance. Plaintiff has merely alleged speculations and conclusions that the infestation may have affected a significant number of other individuals.

In

addition, the cause of action is duplicative of the Negligence cause of action. "Where negligence and nuisance causes of action rely on the same facts about lack of due care, the nuisance claim is a negligence claim." *El Escorial Owners' Assn. v. DLC Plastering, Inc.* (2007) 154 Cal.App.4th 1337, 1349. Here, the Nuisance and Negligence causes of action are duplicative as the causes of action rely on the same facts as to the lack of due care.

Thus,

the demurrer to the fifth cause of action is sustained with 20 days leave to amend.

Eighth Cause of Action for IIED

Defendant's demurrer

to the eighth cause of action is overruled. Plaintiff states sufficient facts to state a cause of action and the cause of action is not uncertain.

"The elements of a

prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." *Miller v. Fortune Commercial Corp.* (2017) 15 Cal.App.5th 214, 228–29.

"[I]t is clear that

the availability of a remedy for breach of implied warranty of habitability does not preclude a tenant from suing his landlord for intentional infliction of mental distress if the landlord's acts are extreme and outrageous and result in severe mental distress." *Stoiber v.*

Honeychuck (1980) 101 Cal.App.3d 903, 921. "Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible

to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress." *Id.*

Plaintiff pleads facts alleging extreme and outrageous conduct on the part of Defendant with the intent of causing or with reckless disregard of causing emotional distress as well as causation of emotional distress. (Complaint, ¶¶ 135-141). Plaintiff alleges that Defendant knew of the bed bug infestation in Plaintiff's unit and other units in the complex for an extended period of time due to complaints made by other tenants (*Id.* at 135.) Plaintiff alleges that Defendant knew of this bed bug infestation yet failed to warn Plaintiff. (*Id.*) In addition, Plaintiff alleges that Defendant knew that Plaintiff was suffering from bed bug bites yet failed to abate the bed bug condition even when being informed and being made aware of the infestation. (*Id.* at 136) These allegations are sufficient to show that Defendant abused a position of power, that Defendant knew that Plaintiff was susceptible to injuries through emotional distress, and that Defendant acted intentionally or unreasonably knowing that it would likely cause emotional distress. The factual allegations are sufficient to state the elements of extreme and outrageous conduct and reckless disregard for purposes of IIED. "Where reasonable [minds] may differ, it is for the jury, subject to the control of the court, to determine whether, in the particular case, the conduct has been sufficiently extreme and outrageous to result in liability." *Fuentes v. Perez* (1977) 66 Cal.App.3d 163, 172.

Thus,
the demurrer to the eighth cause of action is overruled.

Ninth Cause of Action for
Fraudulent Concealment

Defendant's demurrer
to the ninth cause of action is overruled. Plaintiff states sufficient facts to state a cause of action and the cause of action.

"A complaint for fraud must allege the following elements: (1) a knowingly false representation by the defendant; (2) an intent to deceive or induce reliance; (3) justifiable reliance by the plaintiff; and (4) resulting damages." *Service by Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807, 1816. "[T]he elements of an action for fraud and

deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he has known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” *Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.

“Every element of the cause of action for fraud must be alleged in the proper manner and the facts constituting the fraud must be alleged with sufficient specificity to allow defendant to understand fully the nature of the charge made.” *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157. Plaintiff must state facts which “show how, when, where, to whom, and by what means the representations were tendered.” *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.

Plaintiff states the requisite specific facts to state the cause of action for Fraudulent Concealment, including specific facts as to the alleged intentional concealment of a material fact with the intention to deceive Plaintiffs. As noted above, Plaintiff pleads that Defendant knew of the bed bug infestation in Plaintiff’s unit and other units in the building for an extended period of time. Plaintiff has pleaded sufficient facts that a manager named Teresa knew of the bed bug infestation, a managing agent or agents of Defendant actively concealed the information from Plaintiff, and that Defendant failed to rectify the situation. (Complaint, ¶¶ 135, 136, 143-154). Plaintiff has alleged the other elements of fraud including Plaintiff’s unawareness of the information and causation of damages. (*Id.*)

Thus, Defendant’s demurrer to the ninth cause of action is overruled.

Tenth Cause of Action for
Violation of Bus. & Prof. Code 17200

Defendant’s demurrer
to the tenth cause of action is overruled. Plaintiff states sufficient facts to

state a cause of action.

“California Business

and Professions Code Sections 17000, et seq., and 17200, et seq., states [sic] that unfair competition shall mean and include unlawful, unfair or fraudulent business practices.” *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 618–19. “By proscribing ‘any unlawful’ business act or practice, the UCL ‘borrows’ rules set out in other laws and makes violations of those rules independently actionable. [Citation.] However, a practice may violate the UCL even if it is not prohibited by another statute.” *Los Angeles Memorial Coliseum Com. v. Insomniac, Inc.* (2015) 233 Cal.App.4th 803, 835. “The unfair competition law is independent of the Unfair Practices Act and other laws. Its remedies are ‘cumulative ... to the remedies or penalties available under all other laws of this state’ (§ 17205), but its sanctions are less severe than those of the Unfair Practices Act. Prevailing plaintiffs are generally limited to injunctive relief and restitution. (§ 17203; see *ABC Internat. Traders, Inc. v. Matsushita Electric Corp.* (1997) 14 Cal.4th 1247, 1268 [61 Cal.Rptr.2d 112, 931 P.2d 290].) Plaintiffs may not receive damages, much less treble damages, or attorney fees.” *Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 179.

“Restitution under

section 17203 is confined to restoration of any interest in “money or property, real or personal, which may have been acquired by means of such unfair competition.” (Italics added.) A restitution order against a defendant thus requires both that money or property have been lost by a plaintiff, on the one hand, and that it have been acquired by a defendant, on the other. But the economic injury that an unfair business practice occasions may often involve a loss by the plaintiff without any corresponding gain by the defendant, such as, for example, a diminishment in the value of some asset a plaintiff possesses. Such injuries satisfy the plain meaning of section 17204’s “lost money or property” requirement, qualify as injury in fact, and would permit a plaintiff to seek an injunction against the offending business practice even in the absence of any basis for restitution. [¶] This leads to a larger point: To make standing under section 17204 dependent on eligibility for restitution under section 17203 would turn the remedial scheme of the UCL on its head. Injunctions are “the primary form of relief available under the UCL to protect consumers from unfair business practices,” while restitution is a type of “ancillary relief.” *Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 336–337 (internal citations

omitted).

Based on the causes

of action to which no demurrer was addressed as well as the eighth and ninth causes of action to which the demurrer was overruled, Plaintiff has alleged sufficient facts of an unlawful, unfair, or fraudulent business practice on the part of Defendant. In addition, Plaintiff has alleged sufficient facts of injury in fact through lost money from rent payments made when Plaintiff contends that he should not have been required to make those payments.

Thus, the demurrer to

the tenth cause of action is overruled.

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. CCP § 436(a).

The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. CCP § 436(b). The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. CCP § 436. The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP § 437.

Cal. Rules of Court, Rule 3.1322(a)

states:

“A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.”

Defendant moves to strike the following:

“1. All allegations and demands for punitive damages, including but not limited to: a. All references to punitive damages in the Prayer for Relief; and b. Any other references to punitive damages throughout the Complaint.

2. All

demands for attorney's fees and costs of suit, including but not limited to: a. Any demand for attorney's fees under Civil Code § 1021.5; b. Any demand for attorney's fees under Civil Code § 1717; c. Any demand for attorneys' fees under Civil Code § 1942.4; d. Any demand for costs of suit beyond those authorized by Code of Civil Procedure § 1032; and e. All references to attorney's fees in the Prayer for Relief." (Notice of Motion, p. 2, lines 1-11).

First, the Court notes that the motion runs afoul of Cal. Rules of Court, Rule 3.1322(a) as the notice fails to quote the portions of the Complaint sought to be stricken verbatim nor identify the specific paragraphs sought to be stricken. Vaguely seeking to strike "all allegations," "all demands," or "all references," does not comply with the Rules of Court.

Defendant's motion to strike the allegations and prayer for punitive damages is denied.

Civ. Code, § 3294 states, in relevant part:

"(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.

(b) An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation."

"[I]t is clear that the availability of a remedy for breach of implied warranty of habitability does not preclude a tenant from suing his landlord for intentional infliction of mental distress if the landlord's acts are extreme and outrageous and result in severe mental distress." *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 921. "Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress." *Id.* "[I]f the tenant wrongfully evicted elects to sue in tort, damages may be awarded for mental anguish and pain or physical injury; exemplary damages may also be recovered when the landlord's conduct justifies the award[.]" *Id.* at 926.

Plaintiff has alleged sufficient specific facts that Defendants acted with malice, oppression, and/or fraud to support the allegations and prayer for punitive damages. The allegations already highlighted in detail above in connection with the demurrer to the IIED and Fraudulent Concealment causes of action provide the requisite facts to allege that Defendant acted with the conscious disregard for the rights or safety of Plaintiff.

As to the motion to strike "all demands" for attorneys' fees, the motion to strike is denied, in part, and is moot, in part. Plaintiff has alleged grounds to seek attorneys' fees pursuant to a contractual basis based on the underlying lease. As to the references to CCP § 1021.5 and CC § 1942.4, the motion is moot upon the sustaining of the demurrer to the second and fifth causes of action.

Defendant's motion to strike is denied, in part, and is moot, in part.

Plaintiff is ordered to give notice of this ruling.